Case Analysis 1: Howlin' Husky Ski Resort

Negligence, Premises Liability, and Defenses in a Ski Resort Injury

Joseph Tarlin

Northeastern University, College of Professional Studies

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Professor Rachael Bacchus

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Two very experienced skiers named Harold and Harriet traveled to Howlin' Husky Ski Resort to spend time on the slopes. After warming up on the beginner terrain they moved to Black Diamond Hill, which is an expert course with one side marketed by a clear out of bounds tree line and another side by a groomed area that ends at a snow berm. Beyond the berm, the area was unmarked, unmonitored, and dropped off steeply. Harold lost an edge when he was halfway down the run and fell eight feet into the unmarked area, where he fractured his leg. The ski resort's failure to have any hazard sign, boundary market, or warning on that side of the run violated a local law that requires ski areas to maintain a sign system to identify closed trails, dangerous areas, and boundaries. This analysis examines the causes of action Harold may be able to bring against Howlin' Husky Resort and the defenses that the resort is likely to have in response.

Harold's strong claim against the Howlin' Husky Resort is negligence. Negligence requires a plaintiff to prove four separate elements which are a duty of care owed by the defendant, breaching that duty, causation, and the resulting damages (Spengler, Anderson, Connaughton, & Baker, 2022, Chapter 2). A ski resort, similar to any other landowner that invites people onto its premises for a fee, owes their patrons a duty of reasonable care under these circumstances (Spengler, Anderson, Connaughton, & Baker, 2022, Chapter 2). Courts that have been applying this same standard to recreational facilities saying once the operator makes the area available for use, it has to exercise reasonable care to ensure it is safe for users. In Benjamin v. State (1982), a New York court ruled that a state-run hockey arena breached its duty of reasonable care when it left a gap between the protective fencing around the players bench. The reasoning was that the risk was reasonably foreseeable despite no accident actually occurring. The same logic can be applied to Howlin' Husky's decision to groom the left side of

Black Diamond Hill to the edge, which left the drop past the berm fully unmarked and unprotected.

Howlin' Husky breached its duty in two very clear ways. They failed to comply with the local ordinance which requires a sign system to identify dangerous area boundaries. The failure to post any sign on the left side of Black Diamond Hill, despite doing so on the right side near the tree line, strongly suggests the resort knew or should have known that this area posed a risk to skiers. Since this failure directly violated a statute that is in place to protect skiers from this exact situation, Harold may also argue negligence per se. This is under the violation of a safety statute designed to protect people which includes the plaintiff can establish the duty and breach elements of the negligence claim (Spengler, Anderson, Connaughton, & Baker, 2022, Chapter 2). This is comparable to the reasoning from Rispone v. Louisiana State University (1994) where the court found LSU liable after a spectator fell off a nonuniform step in temporary bleachers. The university knew about this but failed to warn people about it and the unmarked hazard caused them to be liable of negligence. They also groomed the ski run in a way that invites skiers toward the unmarked hazardous area rather than pushing them away from it.

Causation is also satisfied. If there had been a boundary marker or berm that was sufficient enough to stop the skier from continuing past the groomed area, Harold would not have slide into the unmarked drop-off (cause-in-fact). The eight-foot fall was also a foreseeable consequence of skiing off into the unmarked slope edge (proximate cause). Harold's fractured leg and the resulting medical expenses make up the damage's element and all of these together represent Harold's viable claim of negligence. Depending on how egregiously the resort disregarded the ordinance, Harold might also allege gross negligence. This is a more in-depth form of carelessness which involves willful or reckless conduct rather than mere carelessness

(Spengler, Anderson, Connaughton, & Baker, 2022, Chapter 2). If an internal discovery reveals that the resort staff were aware of prior near misses on the left side of Black Diamond Hill or the ordinance violation was a known compliance failure rather than oversight, a jury could rule Howlin' Husky's conduct was gross negligence. Gross negligence usually is not taken away by a liability waiver, which is significant given the danger warnings provided on Harold's ski lift ticket.

The most obvious defense that is available to Howlin' Husky is the express assumption of risk language which is printed on the lift ticket. This language states that skiing is inherently dangerous, and the purchaser agrees not to sue the resort or its employees for injuries sustained while using the facilities. Express assumption of risk comes from written or oral language such as a waiver, that outlines risks of an activity (Spengler, Anderson, Connaughton, & Baker, 2022, Chapter 2). Howlin' Husky must show that Harold voluntarily accepted a known of skiing, not a risk that was created by the resort's violation of a safety statute. Courts are generally reluctant to enforce a liability release that would make the defendant free from the safety statute, particularly when the resort increased the danger through their own grooming set up decisions.

Howlin' Husky may also argue an implied assumption of risk, saying that Harold who is an expert skier, voluntarily chose to ski on an advanced, ungroomed ski run, and therefore accepted the risks that came with the terrain. (Spengler, Anderson, Connaughton, & Baker, 2022, Chapter 2). Courts have applied primary assumption of risk in sport settings such as in Knight v. Jewett (1992) and Dilger v. Moyles (1997). These cases ruled that participants and spectators generally accept risks that are inherent to the activity itself and that the defendant's obligation is to avoid an increase to these inherent risks. The defense is somewhat weak here because catching an edge is an inherent risk of skiing but sliding into an unmarked eight-foot drop because of a

missing boundary sign is not. Harold can take the reasoning from Maussner v. Atlantic City Country Club (1997) which says that once an operator has taken on a safety practice, it owes patrons a duty of reasonable care to carry this practice out correctly. In Maussner it was a lightning evacuation plan and in the Howlin' Husky case it is a sign system that is mandated by law. A user's general awareness that the sport carries risk does not excuse the operator's failure to follow its own required safety measures. Even if Harold's negligence claim succeeds, Howlin' Husky can raise comparative negligence which divides fault between the parties rather than taking it outright (Spengler, Anderson, Connaughton, & Baker, 2022, Chapter 2). The resort may argue that an expert skier who has skied worldwide should have recognized the danger of skiing very close to the visible edge of the groomed area and exercised more caution. Since Harold was an expert who chose the left side of an advanced run, a jury could assign some fault to him.

Ultimately, Harold has a strong negligence claim given the resort's undisputed violation of the sign ordinance and the severity of his injury. Howlin' Husky's primary defense is the express waiver on the lift ticket, but this is unlikely to fully excuse the resort. The resort's better arguments are the implied assumption of risk and comparative negligence, which allows the jury to weigh Harold's skill and choice of terrain against the resort's statutory violation. From a risk management standpoint this case illustrates why sport and recreation managers cannot rely on liability waivers as a substitute for compliance with safety laws. A signed release doesn't do very much to protect an organization once it is proved they ignored a legal duty.

References

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